

25STCP04987 25STCP04987

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-09-15

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Case Number: 25STCP04987 Hearing Date: September 15, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

17

TENTATIVE RULING

R. WESTERN MONROE

vs.

CITY OF SANTA

CLARITA

Case

No.: 25STCP04987

Hearing Date: September 15, 2026

Petitioner's

motion to vacate judgment and enter a different judgment is DENIED.

On

12/24/2025, pro per Plaintiff R. Weston Monroe (Plaintiff) filed a petition for writ of mandate against City of Santa Clarita (the City).

On

8/11/226, Petitioner moved to vacate judgment and enter a different judgment.

Discussion

Petitioner

argues that an alternative judgment is necessary “to correct a single, purely legal defect in the August 4, 2026 signed order of dismissal, on documentary facts no party disputes.” (Motion, 1: 20-21.) More specifically, Petitioner argues:

The order’s

operative sentence rests on Petitioner’s asserted failure to name the project applicant within “the 30-day window following the NOD.” No provision of CEQA contains that deadline. Public Resources Code section 21167 allows 30 days to file the petition; Petitioner filed within that period. Public Resources Code section 21167.6.5 governs the naming and service of the real party, and it states no 30-day naming window measured from the notice of determination. And under *Citizens for a Better Eureka v. City of Eureka* (2025) 111 Cal.App.5th 1114, 1130–1131 — authority the order itself cites — whether the absent person is indispensable “remains a case-by-case discretionary determination.” The judgment therefore rests on a rule of law that does not exist, applied in place of a discretionary determination that has not yet been made.

(Motion,
1:22-2: 3.)

However,

the Court’s 8/4/2026 ruling granting the motion to dismiss was based on a determination that the CEQA required Petitioner to name as a real party in interest the applicant identified in the City’s Notice of Determination. Petitioner named a completely unrelated third party LLC (Royal Clark Development Company LLC) in the caption and failed to name any real party in the body of his original Petition. Petitioner’s ex parte “Incorrect Name” Amendment was ineffectual and could not cure the omission once the limitations period had run, and Wiley was a necessary and indispensable real party in interest whose absence compelled dismissal. (8/4/2026 Ruling, pp. 2-3.)

Accordingly,

the issue identified by Petitioner is not dispositive.

Moreover,

as noted by Defendants in opposition, the 8/4/2026 Ruling is not the first time this Court resolved the dispositive questions. In its 4/16/2026 Minute Order ruling on the City's demurrer, the Court held: that Public Resources Code section 21167.6.5 requires a CEQA petitioner to name and serve the person identified in the Notice of Determination; that persons so identified "are necessary parties for purposes of Code of Civil Procedure section 389"; and that in a CEQA challenge the project applicant "is an indispensable party whose absence requires dismissal" (Citizens for a Better Eureka v. City of Eureka (2025) 111 Cal.App.5th 1114, 1126-1127, 1129-1132; Beresford Neighborhood Assn. v. City of San Mateo (1989) 207 Cal.App.3d 1180, 1187-1190).

Finally,

because Plaintiff argues that the Court should have reached an alternative ruling, this motion is one of reconsideration regardless of its caption. The name of a motion is not controlling, and, regardless of the name, a motion asking the trial court to decide the same matter previously ruled on is a motion for reconsideration under Code of Civil Procedure section 1008." (Powell v. County of Orange (2011) 197 Cal.App.4th 1573, 1577.) Plaintiff does not identify any new facts or law to justify a different outcome.

Based

on the foregoing, Petitioner's motion to vacate judgment and enter a different judgment is denied.

It is so ordered.

Dated: September
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must
send an email to the court at smcdept17@lacourt.org
by 4 p.m. the day prior as directed by the instructions provided on the court

website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative.

If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.